

λίδης ὁ Ἄλωπεκῆθεν ἀφείλετο, οὐ φάσκων δεῖν ἄνευ δικαστηρίου γνώσεως οὐδένα τῶν πολιτῶν ἀποθνήσκειν· καὶ κρίσεως ἐν δικαστηρίῳ γενομένης, ὁ μὲν Λυσίμαχος ἀπέφυγεν, καὶ ἐπωνυμίαν ἔσχευεν ὁ ἀπὸ τοῦ τυπάνου, ὁ δὲ δῆμος ἀφείλετο τῆς βουλῆς τὸ θανατοῦν καὶ δεῖν καὶ χρήμασιν ζημιῶν, καὶ νόμον ἔθετο, ἃν τινος ἀδικεῖν ἢ βουλή καταγνῶ ἢ ζημιώσῃ, τὰς καταγνώσεις καὶ τὰς ἐπιζημιώσεις εἰσάγειν τοὺς θεσμοθέτας εἰς τὸ δικαστήριον, καὶ ὃ τι ἂν οἱ 10 δικασταὶ ψηφίσωνται, τοῦτο κύριον εἶναι.

[Col. 24.] 2

κρίνει δὲ || τὰς ἀρχὰς ἢ βουλή τὰς πλείστας, καὶ μάλισθ' ὅσαι χρήματα διαχειρίζουσιν· οὐ κυρία δ' ἢ κρίσις, ἀλλ' ἐφέσιμος εἰς τὸ δικαστήριον. ἔξεστι δὲ καὶ τοῖς ιδιώταις εἰσαγγέλλειν ἢν ἂν βούλωνται τῶν ἀρχῶν μὴ χρῆσθαι τοῖς νόμοις· ἔφεσις δὲ καὶ 15 τούτοις ἐστὶν εἰς τὸ δικαστήριον, ἐὰν αὐτῶν ἢ βουλή καταγνῶ.

3 ΕΥΜΗΛΕΙΔΗΣ (B¹ coll. Φιλομηλείδης Od. ρ 134): Εὐμηλίδης K-W, H-L, K³, B²⁻⁴, Th. 4 ἈΛΩΠΕΘΗΚΕΝ coll. K. 5 <τῷ> δικαστηρίῳ K-W^{1,2} (τῷ om. K-W³), idem in c. 46, 10 et c. 55, 7 τῷ non inserunt. 6 ἀπέφυγε H-L. ΕΥΧΕΝ (K-W, H-L, K⁴, Th): ἔσχε B, εἶχεν K¹. 8 ἐάν H-L. 9 ἐπιζημιώσεις (nusquam alibi inventum) K, K-W, B, Th: ζημιώσεις Wyse, H-L. 12 καὶ suprascriptum agn. Sakellarios (K⁴, Th). 13 ἐτ' ἐφέσιμος H-L.

ἀπηλλάχθη Baiter; ἀφείλετο, in the text, suggests ἀφῆρέθη) ὑπὸ τοῦ δήμου τοῦ ὑμετέρου παραδεδομένος ἤδη τοῖς ἑνδεκα.

Εὐμηλίδης] The only passage where the name is found, as that of an Athenian, is [Dem.] 49 § 11, τῷ παιδί τοῦ Εὐμηλίδου. The date of the speech is B.C. 362.

ἀφείλετο] here 'rescued him.' It is used below in another sense: 'deprived of the power of.'

δικαστηρίῳ] without the art. in 46 § 2 and 55 § 2; but with the art. in 47 § 3, 49 § 3, 55 § 4 and 56 § 1. The article is omitted only where the court is contrasted with another (Kaibel, 208f). βουλή always has the article.

ὁ ἀπὸ τοῦ τυπάνου] 'the man who escaped the bastinado.' Schol. Arist. *Plut.* 476, τύμπανα...ξύλα, δι' ὧν τοὺς καταδίκους ἔτυπτον, and Photius, *s. v.* τύμπανον. Cf. Lys. 13 § 56, ὡς ἀνδροφόνον ὄντα—τῷ δημῷ παρέδοτε καὶ ἀπετυμπανίσθη, *ib.* 67, 68; and Dem. 9 § 61. This form of punishment was inflicted on κακοῦργοι, including ἀνδροφόνου. This confirms the conjecture that Lysimachus was arraigned for taking part in causing citizens to be put to death under the Thirty (Xen. *l. c.*). The restriction in the powers of the βουλή mentioned in this chapter has already been noticed in more general terms in c. 41, αἱ τῆς βουλῆς κρίσεις εἰς τὸν δῆμον ἐληλύθασιν, a passage referring to the time subsequent to the archonship

of Euclides. Even before that time the βουλή did not necessarily enforce its right of inflicting penalties, but sometimes exercised the option of referring the case to a law-court, cf. CIA i 59, (τὴν βουλὴν) κολάζειν τῶν δωροδοκούντων καταψηφισμένην, καὶ εἰς δικαστήριον αὐτοὺς εἰσάγειν, καθότι ἂν δοκῇ αὐτῇ.

ἐπιζημιώσεις] not found elsewhere. τὰ ἐπιζήμια is used of 'penalties' in Dem. and Plato; ἐπιζημιῶν, in Xen. *Hell.* v 2 § 22; ἐπιζημίωμα, in Pollux viii 149. We also have ἐπιβάλλειν ζημίαν and ἐπιτιμίαν.

θεσμοθέτας] 59.

§ 2. κρίνει τὰς ἀρχὰς] Antiphon, 6 § 49, πυθόμενος αὐτοὺς (the πορισταί, πωληταί, πρακτορες καὶ ὑπογραμματεῖς) δεινὰ καὶ σχέτλια ἐργάζεσθαι, εἰσῆγον εἰς τὴν βουλὴν.

ἐφέσιμος] [Dem.] 7 § 9, ταῦτα δὲ κύρια εἶσεσθαι οὐκ ἐπειδὴν ἐν τῷ δικαστηρίῳ τῷ παρ' ὑμῶν κυρωθῇ...ἀλλ' ἐπειδὴν ὡς ἐαυτὸν ἐπανεχθῇ, ἐφέσιμον τὴν παρ' ὑμῶν γενομένην γνῶσιν ὡς ἐαυτὸν ποιούμενος. Lucian, *pro Imaginibus* 15, ἐφέσιμον...δικην Pollux viii 125, (κρίσει) ἐφέσιμον.

εἰσαγγέλλειν] probably here used in the general sense of bringing to the knowledge of the Council, without reference to the special process called εἰσαγγελία. The procedure in the latter case is described by Dr Hager in *Dict. Ant. s. v.*, i 709 a.